

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Susruta Sudula	Team: Team # 2	CCRB Case #: 201210940	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 08/22/2012 8:40 PM	Location of Incident: 101st Precinct stationhouse, New Haven Avenue and Beach 19th Street, § 87(2)(b)		18 Mo. SOL 2/22/2014		Precinct: 101
Date/Time CV Reported Thu, 08/23/2012 12:47 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/23/2012 12:47 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Anthony Rivelli	09204	927416	101 PCT
3. SGT Keith Gallagher	00371	938517	101 PCT
4. POM Justin Ellis	18965	944536	101 PCT
5. SGT Kenny Conde	04988	944452	101 PCT
6. POM Jeffrey Liu	24339	943491	101 PCT
7. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	A . Exonerated
B . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	B . Exonerated
C . POM Anthony Rivelli	Discourtesy: PO Anthony Rivelli spoke discourteously to § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	C . Exonerated
D . POM Anthony Rivelli	Force: PO Anthony Rivelli used physical force against § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	D . Exonerated
E . POM Justin Ellis	Force: PO Justin Ellis used physical force against § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	E . Exonerated

Officer(s)	Allegation	Investigator Recommendation
F . SGT Keith Gallagher	Abuse: Sgt. Keith Gallagher participated in the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants at Beach 19th Street and New Haven Avenue in Queens.	F . Unsubstantiated
G . POM Justin Ellis	Abuse: PO Justin Ellis strip-searched § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	G . Unfounded
H . POM Justin Ellis	Abuse: PO Justin Ellis conducted a cavity search of § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	H . Unfounded
I . POM Jeffrey Liu	Abuse: PO Jeffrey Liu frisked § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	I . Alleged Victim Unavailable
J . POM Anthony Rivelli	Abuse: PO Anthony Rivelli frisked § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.	J . Alleged Victim Unavailable
K . Officers	Force: Officers used physical force against § 87(2)(b) at the 101st Precinct stationhouse.	K . Exonerated
L . POM Justin Ellis	Force: PO Justin Ellis used physical force against § 87(2)(b) at the 101st Precinct stationhouse.	L . Exonerated
M . POM Anthony Rivelli	Force: PO Anthony Rivelli used physical force against § 87(2)(b) at the 101st Precinct stationhouse.	M . Exonerated
N . SGT Kenny Conde	Force: Sgt. Conde tasered § 87(2)(b) at the 101st Precinct stationhouse.	N . Exonerated
O . SGT Kenny Conde	Discourtesy: Sgt. Kenny Conde spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . POM Justin Ellis	Discourtesy: PO Justin Ellis spoke discourteously to § 87(2)(b) at § 87(2)(b).	P . Unsubstantiated
Q . Officers	Force: Officers used physical force against § 87(2)(b) in the patrol van.	Q . Officer(s) Unidentified

Case Summary

On August 23, 2012, § 87(2)(b) filed the following complaint on the phone at the CCRB (encl. 10A-C). On August 22, 2012, the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants was stopped by officers. The following allegations resulted:

Allegation A- Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation B- Discourtesy: An officer spoke discourteously to § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation C- Discourtesy: PO Anthony Rivelli spoke discourteously to § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation D- Force: PO Anthony Rivelli used physical force against § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation E- Force: PO Justin Ellis used physical force against § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegations A, B, C, D and E be exonerated.**

Allegation F- Abuse of Authority: Sgt. Keith Gallagher participated the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(g)

Therefore, it is recommended that **Allegation F be closed as unsubstantiated.**

Allegation G- Abuse of Authority: PO Justin Ellis strip-searched § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation H- Abuse of Authority: PO Justin Ellis conducted a cavity search of § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(g)

Therefore, it is recommended that **Allegations G and H be unfounded.**

Allegation I- Abuse of Authority: PO Jeffrey Liu frisked § 87(2)(b) and § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation J- Abuse of Authority: PO Anthony Rivelli frisked § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegations I and J be closed as victims unavailable.**

Allegation K- Force: Officers used physical force against § 87(2)(b) at the 101st Precinct stationhouse.

Allegation L- Force: PO Justin Ellis used physical force against § 87(2)(b) at the 101st Precinct stationhouse.

Allegation M- Force: PO Anthony Rivelli used physical force against § 87(2)(b) at the 101st Precinct stationhouse.

Allegation N- Force: Sgt. Kenny Conde tasered § 87(2)(b) at the 101st Precinct stationhouse.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegations K, L and M and N be exonerated.**

Allegation O- Discourtesy: Sgt. Kenny Conde spoke discourteously to § 87(2)(b) at the 101st Precinct stationhouse.

§ 87(2)(g) § 87(2)(b)
Therefore, it is recommended that **Allegation O be unsubstantiated.**

Allegation P- Discourtesy: PO Justin Ellis spoke discourteously to § 87(2)(b) at § 87(2)(b)

§ 87(2)(g) § 87(2)(b)
Therefore, it is recommended that **Allegation P be unsubstantiated.**

Allegation Q- Force: Officers used physical force against § 87(2)(b) in the patrol van.

§ 87(2)(g) § 87(2)(b)
Therefore, it is recommended that **Allegation Q be closed as officers unidentified.**

The case was initially assigned to Inv. Dov Levavi. Upon his promotion, it was reassigned to Inv. Susruta Sudula on October 23, 2012.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b), § 87(2)(b) *black male with black hair and brown eyes.*

Statements to Medical Personnel

The Ambulance Call Report notes that § 87(2)(b) stated that he was tasered by police. The medical records from § 87(2)(b)'s visit to § 87(2)(b) on § 87(2)(b) reports that § 87(2)(b) complained of pain in mouth and a headache. He stated that he was beaten by police officers. The medical records from Correctional Health Services noted that § 87(2)(b) complained of pain in wrists due to tight hand cuffs.

CCRB Testimony

§ 87(2)(b) provided a telephone interview from § 87(2)(b) on January 30, 2013 (encl. 11A-H).

On August 22, 2012, at approximately 8:40 p.m., § 87(2)(b) and § 87(2)(b) were in a vehicle driven by § 87(2)(b). When they were at a stop sign at New Haven Avenue and Beach 19th Street, a sky blue Crown Victoria pulled them over. Though § 87(2)(b) believed that there were four officers in the Crown Victoria, the investigation determined that there were only three. PO1, identified through investigation as PO Jeffrey Liu, was described as a 5'7"-5'8" tall, 240-260 pound bald Asian man in his thirties. PO2, identified through investigation as Sergeant Keith Gallagher, was described as 6'1"-6'2" tall, 200 pound white man with gray hair, in his forties and was referred to as "Sarge." The investigation determined that Sgt. Gallagher was not in the vehicle that initially stopped § 87(2)(b)'s vehicle, but arrived at the scene later. PO3, identified through investigation as PO Anthony Rivelli, was described as a 5'6" tall, 280 pound white man with black hair and in his late thirties. PO4, identified through investigation as PO Justin Ellis, was described as a 6'2" tall, 200 pound white man in his late twenties.

All four officers approached the vehicle with their weapons drawn and pointed at the car. § 87(2)(b) stated that Sgt. Gallagher and PO Rivelli approached the driver's side, but the investigation determined that it had been PO Ellis and PO Rivelli. § 87(2)(b) rolled down his window and asked why he was being stopped. PO Ellis and PO Rivelli did not answer and immediately grabbed § 87(2)(b)'s dreadlocks and shirt collar and pulled him through the driver's window. Both officers threw § 87(2)(b)

§ 87(2)(b) onto the floor in the rear of the driver's side of the vehicle and § 87(2)(b) was handcuffed. They began kicking and punching him in the face, back, and back of the head.

PO Liu opened both doors on the driver's side of the vehicle and told the occupants of the vehicle to stay where they were. § 87(2)(b) stated PO Ellis told the occupants of the vehicle to "Stay the fuck right there," but the investigation determined that PO Ellis was not on the passenger side of the vehicle at this point. A marked patrol car and an unmarked car arrived. § 87(2)(b) was taken to the marked patrol car and Sgt. Gallagher told the officers to take § 87(2)(b) to the precinct.

PO Rivelli, PO Ellis, Sgt. Gallagher and PO Liu still had their guns drawn and pointed at the car. PO Liu directed all the occupants to exit the vehicle and put their hands up. PO Liu frisked § 87(2)(b) and PO Rivelli frisked § 87(2)(b). PO Ellis approached § 87(2)(b) and frisked § 87(2)(b)'s pockets and waistband area. PO Ellis then searched § 87(2)(b)'s front and back pockets.

While PO Liu was interacting with the occupants, Sgt. Gallagher radioed for an NCIC check. Sgt. Gallagher told the occupants of the vehicle that § 87(2)(b) was arrested due to an open warrant. The occupants provided their information to Sgt. Gallagher, but § 87(2)(b) did not have his ID. Sgt. Gallagher ordered § 87(2)(b) and § 87(2)(b) to the front of the vehicle and § 87(2)(b) to the back of the vehicle.

PO Ellis, PO Rivelli and PO Liu began to search the vehicle. PO Rivelli opened and searched the engine as PO Ellis searched the glove compartment and looked under the front seats of the vehicle. PO Liu searched under the back seats. PO Rivelli and PO Ellis looked in the trunk of the vehicle.

§ 87(2)(b) remained at the back of the vehicle. PO Ellis frisked § 87(2)(b) again, put on gloves and pulled § 87(2)(b)'s pants and boxers down. PO Ellis placed his hands inside § 87(2)(b)'s rectum and then swiped to the front and put his hands near his genitals. § 87(2)(b) repeatedly asked why he was being strip searched. Sgt. Gallagher observed the strip search. PO Ellis handcuffed § 87(2)(b) and escorted him and he was taken to the 101st Precinct stationhouse.

Once at the stationhouse, PO Ellis escorted § 87(2)(b) to the back toward the holding cell. § 87(2)(b)'s handcuffs were removed and PO Ellis asked § 87(2)(b) to remove his shoelaces and then told him to strip. § 87(2)(b) refused. Three to four additional officers began moving into the back area, including Sgt. Gallagher and PO Rivelli. When § 87(2)(b) again refused to strip, the officers immediately jumped on § 87(2)(b) and attempted to pull § 87(2)(b)'s pants down. PO Ellis punched § 87(2)(b) in his face and PO Rivelli kicked him. Other officers were also hitting § 87(2)(b) but because they were on top of him, § 87(2)(b) could not discern what the other officers were doing specifically.

An officer said that § 87(2)(b) had thrown narcotics into the holding cell during his struggle with the officers, but § 87(2)(b) denied this. § 87(2)(b) tried to push the officers off of him and started to run away, at which point he was tasered. § 87(2)(b) stated that Sgt. Gallagher tasered him, but the investigation determined that it had been Sgt. Conde. Sgt. Conde said "This fucker didn't even drop" and then tasered him again.

EMS arrived and PO Ellis accompanied § 87(2)(b) in the ambulance to § 87(2)(b). At the hospital, PO Ellis told § 87(2)(b) that he had been an "asshole all this time." § 87(2)(b) refused to leave without additional medical attention. At this point, § 87(2)(b)'s wife, § 87(2)(b) sister, § 87(2)(b) and sister's friend arrived at the hospital.

PO Ellis attempted to handcuff § 87(2)(b) but § 87(2)(b) was resisting arrest. PO Ellis started banging § 87(2)(b)'s hand against the bed. Additional officers were called to the hospital. § 87(2)(b)

§ 87(2)(b)'s feet were shackled and he was handcuffed. § 87(2)(b) could only describe these officers as white, and perhaps one Hispanic. § 87(2)(b) was placed in the patrol van and an officer elbowed him on the back of the head and in the face. § 87(2)(b) did not know which officer did this. PO7, described as a short white male, kicked § 87(2)(b) and one of § 87(2)(b)'s front teeth was knocked out.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male with brown hair and hazel eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at § 87(2)(b) on Riker's Island on February 25, 2013. § 87(2)(f)

PO Ellis pointed his gun at the windshield and yelled to see his hands, which § 87(2)(b) showed. PO Rivelli came to the driver's side of the vehicle and said "Get the fuck out of the car." PO Rivelli opened the driver's side door and punched § 87(2)(b) and hit him on his nose. PO Rivelli grabbed § 87(2)(b) just below his collar and pulled him onto the ground. While PO Rivelli was interacting with him, PO Ellis remained in front of the vehicle with his gun pointed. The investigation later determined that PO Ellis had been assisting PO Rivelli in removing § 87(2)(b) from the vehicle. § 87(2)(b) was removed from the vehicle, handcuffed and sat on the curb. § 87(2)(b) did not mention a strip search being conducted at the scene. Sgt. Gallagher responded and told an officer to take § 87(2)(b) to the precinct. § 87(2)(b) was transported on his own.

At the precinct, PO Ellis called § 87(2)(b) "Sugar Butt" and told him to take off his clothes. § 87(2)(b) refused. PO Liu told § 87(2)(b) that he either removes his clothes or goes to the hospital. § 87(2)(b) said that he would go to the hospital. PO Ellis punched § 87(2)(b) in the face. PO Rivelli, PO Liu, PO Ellis and another officer tripped § 87(2)(b) causing him to fall. PO Liu kicked § 87(2)(b) in his side and hit him in the face. PO Rivelli hit § 87(2)(b) in the stomach. By this point, § 87(2)(b) was resisting. The officers continued to try to get § 87(2)(b) on the ground by hitting his legs as § 87(2)(b) was leaned up against the holding cell.

During the struggle, § 87(2)(b)'s top, front tooth had fallen out and was lying on the floor. His mouth was bloody, as was his nose. § 87(2)(b)'s lip was split open and he did not have any other visible cuts. A package also fell out of his person. A white substance in the form of rocks was in a Ziploc bag which § 87(2)(b) stated was cocaine. § 87(2)(b) was transported to the hospital. Upon his return, PO Ellis, PO Rivelli, PO Liu and Sgt. Gallagher began punching § 87(2)(b) in his face and side. PO Rivelli also called § 87(2)(b) "Sugar Butt." § 87(2)(b) asked to go back to the hospital because his mouth started bleeding again. PO Liu told § 87(2)(b) that § 87(2)(b) would not be going back to the hospital.

Attempts to Contact Civilians

Between August 24, 2012 and April 3, 2013, exhaustive contact attempts were placed to § 87(2)(b) and § 87(2)(b) and § 87(2)(b) could not be reached. § 87(2)(b) and § 87(2)(b) missed their CCRB appointments without calling ahead to cancel or reschedule and to date, have failed to contact the CCRB. A search of the Department of Correction website revealed that § 87(2)(b) and § 87(2)(b) are not currently incarcerated in New York City.

NYPD Statements:

Subject Officer: PO ANTHONY RIVELLI

- PO Rivelli is a § 87(2)(b), § 87(2)(b) -old, bald white male with brown eyes.
- On August 22, 2013, PO Rivelli was working from 5:30 p.m. to 2:05 a.m. the next day. He was assigned to anti-crime and was working with PO Ellis. PO Rivelli was in plainclothes and assigned to RMP 229, which is a blue 2008 Crown Victoria.

Memo Book (encl. 13B-E)

At 8:20 p.m., there was a car stop at New Haven and Beach 19th Street. A black male subject was observed who was wanted for a grand larceny supreme court warrant. The subject violently resisted being placed in custody and kept vehicle in drive. The passenger was also uncooperative and disorderly. At 8:30 p.m., two males were transported to the 101st Precinct stationhouse. One female rear passenger also has an active warrant. At 8:40 p.m., PO Rivelli arrived at the 101st Precinct stationhouse. The first defendant, § 87(2)(b) was negative for contraband. The second defendant, § 87(2)(b) fought with officers, and threw a large rock of crack to § 87(2)(b) over the cell doors. § 87(2)(b) continued acting out and was tasered by the patrol supervisor. § 87(2)(b) was found in possession of the narcotics that § 87(2)(b) had discarded. At 8:50 p.m., § 87(2)(b) was transported to § 87(2)(b). At 10:00 p.m., the vehicle was released to § 87(2)(b) § 87(2)(b) at the 101st Precinct stationhouse. § 87(2)(b) signed PO Rivelli's memo book.

Complaint and Arrest Reports (encl. 13K-S)

On August 22, 2012, PO Rivelli observed § 87(2)(b) of a felony Supreme Court warrant operating a motor vehicle. § 87(2)(a) 160.50 § 87(2)(b)

§ 87(2)(b) a passenger in the vehicle, was acting loud and boisterous and refused to give pedigree information. At the 101st Precinct stationhouse, both men were in the cell area and § 87(2)(b) began fighting officers and threw a large amount of crack to § 87(2)(b) in the cell. § 87(2)(b) did retrieve narcotics and hide them from PO Rivelli. § 87(2)(b) then damaged a department computer and was tasered by a patrol supervisor. § 87(2)(b) was removed to § 87(2)(b) for treatment. The arrest report for § 87(2)(b) adds that a strip search was conducted. § 87(2)(b) was charged with § 87(2)(a) 160.50, § 87(2)(b) § 87(2)(b). § 87(2)(b) was charged with § 87(2)(a) 160.50 § 87(2)(b) tampering with physical evidence, criminal mischief and resisting arrest.

CCRB Testimony (encl. 13F-J)

PO Rivelli was interviewed at the CCRB on May 8, 2013. On August 22, 2012, at approximately 8:20 p.m., PO Rivelli was patrolling with PO Ellis when he observed a white jeep with four individuals. The driver, § 87(2)(b) matched the photograph that was attached to a felony warrant for grand larceny. PO Rivelli made a U-turn and then turned on the lights and sirens. § 87(2)(b) did not stop the vehicle so PO Rivelli drove ahead of § 87(2)(b) and cut off the car from the front. Both PO Rivelli and PO Ellis immediately called for back-up and exited their vehicle. § 87(2)(b) kept the car in gear and repeatedly reversed and drove the vehicle forward. PO Rivelli drew his weapon and pointed at § 87(2)(b)'s vehicle. PO Rivelli and PO Ellis issued commands for § 87(2)(b) to stop the vehicle. PO Rivelli did not see what the other occupants were doing in the vehicle as he approached the jeep.

PO Rivelli and PO Ellis approached the driver's side of the vehicle and reached into the window to try to place the car into park. While PO Rivelli was trying to get his hand on the gearshift, he also had his hands on § 87(2)(b) who was not complying with orders to park the car. § 87(2)(b) sprayed the officers with windshield wiper fluid. PO Rivelli tried to open the vehicle door to remove § 87(2)(b) from the

vehicle, but the door would not open. The other occupants of the vehicle were yelling and cursing at the officers. PO Rivelli was grabbed by one of the occupants of the vehicle. At no point did PO Rivelli or PO Ellis tell any occupant to “stay the fuck right there.”

§ 87(2)(b) lunged toward the center console and PO Rivelli believed that § 87(2)(b) had a weapon. PO Rivelli opened § 87(2)(b)'s door and both he and PO Ellis grabbed § 87(2)(b) and put him onto the ground. PO Rivelli grabbed § 87(2)(b) on the left shoulder area and slightly lower on the body to remove him from the vehicle. Additional officers arrived on the scene at this point, including PO Liu and Sgt. Gallagher. PO Rivelli could not remember any other specific officers who arrived given his focus on § 87(2)(b).

On the ground, § 87(2)(b) flailed his arms and legs, kicked, screamed and spat at PO Ellis and PO Rivelli. PO Rivelli punched § 87(2)(b) and may have made contact with § 87(2)(b)'s head during the struggle on the ground. PO Rivelli did not kick § 87(2)(b) in the face. PO Rivelli did not know where PO Ellis made contact with § 87(2)(b) but stated that he did not kick or punch § 87(2)(b) in the face. Eventually, PO Rivelli and PO Ellis were able to restrain § 87(2)(b) and PO Rivelli handcuffed him.

PO Rivelli ran a check on § 87(2)(b)'s ID, which came back that she had an active warrant. PO Rivelli did not see any officer conduct a rectal search of § 87(2)(b) at the scene. PO Rivelli did a cursory search of the lunge-able area of the vehicle, including the front seat and the area where § 87(2)(b) was reaching toward. PO Rivelli did not go into any compartments. Nothing was recovered from the vehicle. PO Rivelli did look into the engine area, but only because the car had stalled and would not start.

At the 101st Precinct stationhouse, PO Rivelli was in a separate room processing the arrests when he heard a commotion. PO Rivelli went into the holding cell area and saw PO Ellis engaged in a struggle with § 87(2)(b). PO Rivelli told § 87(2)(b) to calm down and PO Rivelli never made physical contact with him. Other officers were also in the holding cell. § 87(2)(b) threw a computer screen. He then reached his left hand into his groin area and pulled out a large quantity of a white substance which he threw over the holding cell area to § 87(2)(b). PO Rivelli listed this action as a strip search on the arrest report because § 87(2)(b)'s undergarments were exposed. No strip search or cavity search took place. § 87(2)(b) took a large computer printer and threw it at the officers who were in the holding cell area. Sgt. Conde, tasered § 87(2)(b) and then the officers were able to handcuff him. PO Rivelli did not remember hearing any officer say, “This fucker didn’t even drop.”

ESU was requested to the cell area. PO Rivelli recovered the contraband from the cells that had been thrown. The contraband was discovered to be cocaine. Sgt. Gallagher had also entered the holding cell, but only to ensure PO Rivelli’s safety and supervise the removal of the narcotics. The only contact PO Rivelli had with § 87(2)(b) was to help other officers rear-handcuff him.

§ 87(2)(b) was transported to § 87(2)(b) by ambulance. PO Rivelli remained at the 101st Precinct stationhouse to process the arrests. PO Rivelli was not present when § 87(2)(b) returned and did not know why § 87(2)(b) went to the hospital the second time.

§ 87(2)(b) § 87(2)(b) the rightful owner of the vehicle § 87(2)(b)'s vehicle, came to the 101st Precinct stationhouse. The vehicle was returned to § 87(2)(b) and no inventory search was conducted. PO Rivelli did not use any profanity during the incident and did not hear any officer use any profanity.

Subject Officer: PO JUSTIN ELLIS

- PO Ellis is a § 87(2)(b), § 87(2)(b)-old white male with blonde hair and blue eyes.
- On August 22, 2012, PO Ellis was working from 5:30 p.m. to 2:05 a.m. He was assigned to anti-crime and was working with PO Rivelli and PO Liu. He was in RMP 229, which is a powder blue Crown Victoria.

Memo Book (encl. 14A-C)

PO Ellis had detailed entries pertaining to the stop of § 87(2)(b) and § 87(2)(b) and the arrest processing.

CCRB Testimony (14D-G)

On May 8, 2013, PO Ellis was interviewed at the CCRB. § 87(2)(g)

During the struggle at Beach 19th Street and New Haven Avenue, PO Ellis did not kick § 87(2)(b) PO Ellis may have punched § 87(2)(b) in the head as § 87(2)(b) was fighting them and was violent. PO Ellis never pulled § 87(2)(b)'s hair and did not see any other officer do so. PO Ellis did not interact with anyone else on the scene other than § 87(2)(b)

PO Ellis did not see any officer pull down § 87(2)(b)'s pants and boxers and conduct a rectal search. No strip search or cavity search was conducted. PO Ellis never told any of the occupants to “stay the fuck right there” and did not hear any other officer say this. In addition to § 87(2)(b) two other occupants of the vehicle were then transported back to the precinct. PO Ellis and PO Rivelli did a quick search of the vehicle at the scene, but only in the area where § 87(2)(b) had been reaching as they were searching for weapons.

§ 87(2)(b) was not strip-searched at the stationhouse. When § 87(2)(b) pushed PO Ellis in the stationhouse, PO Ellis was thrown into the wall. § 87(2)(b) punched and kicked PO Ellis so PO Ellis punched § 87(2)(b) in the cheek in defense. PO Ellis did not remember how many times he punched § 87(2)(b) and the punches were not successful in subduing him. PO Ellis did not kick § 87(2)(b) and did not see any other officer do so. Other officers then entered to assist PO Ellis, but PO Ellis only recalled PO Rivelli. PO Ellis did not hear any officer say, “This fucker didn’t even drop.”

PO Ellis was the sole officer that was assigned to transport § 87(2)(b) in the ambulance to the hospital to have the taser wires removed. At the hospital, § 87(2)(b) was irate. PO Ellis never told § 87(2)(b) that he “had been an asshole this whole time.”

§ 87(2)(b) refused to go back to the precinct so PO Ellis tried to physically take his arm to handcuff him and bring him back. § 87(2)(b) swung at PO Ellis and tried to fight him. § 87(2)(b) was kicking and trying to take the bed to throw it at PO Ellis. PO Ellis probably hit § 87(2)(b)'s hand against the bed when trying to subdue him and place him in handcuffs. Another officer as well as several security guards helped handcuff § 87(2)(b)

On the way back to the 101st Precinct stationhouse, § 87(2)(b) tried to kick out the window of the van and the side of the wall of the van. PO Ellis had to sit on § 87(2)(b)'s legs to prevent him from breaking anything. At no point did PO Ellis kick § 87(2)(b) in the teeth and did not see any officer do this. PO Ellis did not see § 87(2)(b)'s tooth fall out.

When § 87(2)(b) arrived at the precinct, § 87(2)(b) became unruly again so § 87(2)(b) was transported back to § 87(2)(b) for a psychiatric evaluation. PO Ellis did see § 87(2)(b) with a bloody mouth, but did not know how it was caused.

Subject Officer: PO JEFFREY LIU

- PO Liu is a § 87(2)(b) Asian male with black hair and brown eyes.
- On August 22, 2012, he was working from 5:30 p.m. to 2:05 a.m.. He was assigned to Anti-Crime, was in plainclothes and was working with PO Rivelli and PO Ellis.

Memo Book (encl. 15A-B)

At 8:30 p.m., there was a car stop at New Haven and Beach 19th Street. At 8:38 p.m., three individuals were arrested by PO Rivelli.

CCRB Testimony (15C-E)

PO Liu was interviewed at the CCRB on May 24, 2013. § 87(2)(g)

The occupants did not continue to drive the vehicle after they stopped the car. PO Liu had his gun drawn and pointed at the passenger's side of the vehicle because he could not see the occupant's hands and the driver had an open felony warrant. PO Liu was fearful for his life and the safety of the others officers as well.

PO Liu noticed that the occupants of the vehicle were moving around and screaming so PO Liu went to the passenger's side of the vehicle and asked to see the passenger's hands. The occupants of the vehicle were asked to exit the vehicle. PO Liu did not frisk or search any of the occupants or search the vehicle. PO Liu did not see any strip search being conducted at the scene. PO Liu did not remember if he transported any of the civilians to the stationhouse.

At the stationhouse, PO Liu was in the holding pen area and observed § 87(2)(b) punch PO Ellis. PO Liu did not see PO Ellis hit § 87(2)(b). PO Liu did not have any physical interaction with § 87(2)(b). PO Liu did not tell § 87(2)(b) that either he removes his clothing or he goes to the hospital. PO Liu did not hear any discourteous language in the cell area.

Subject Officer: SGT. KENNY CONDE

- Sgt. Conde is a § 87(2)(b) Hispanic male with black hair and brown eyes.
- On August 22, 2012, he worked from 2:50 p.m. to 11:42 p.m. He was the patrol supervisor and was working with PO O'Brien. He was on duty and in uniform.

Memo Book (encl. 17A-B)

At 10:20 p.m., Sgt. Conde deployed his CED on a violent prisoner who punched and kicked the arresting officer.

CCRB Testimony (encl. 17C-D)

On June 26, 2013, Sgt. Conde was interviewed at the CCRB. § 87(2)(g)

On August 22, 2012, at approximately 10:20 p.m., Sgt. Conde came into the precinct and was standing behind the desk, observing the monitors when he saw PO Rivelli and PO Liu trying to lock § 87(2)(b) in the holding pen. The investigation later determined that it had been PO Ellis and PO Liu in the holding cell at this point. § 87(2)(b) pushed PO Ellis approximately four to five feet and began to swing and

kick PO Ellis. PO Ellis grabbed his arms and tried to bring him down to the ground. Besides grabbing § 87(2)(b)'s arms, there was no other physical contact between the officers and § 87(2)(b).

Sgt. Conde entered and attempted to grab § 87(2)(b)'s arms and bring him to the ground in order to gain control, but was unable to do so. § 87(2)(b) was attempting to punch the officers and escape from the holding cell area. During this struggle, § 87(2)(b) reached into his rectum area, grabbed narcotics and threw them into the holding cell area.

After approximately four to five minutes of struggling with § 87(2)(b) Sgt. Conde deployed his taser. § 87(2)(b) dropped to the ground and this allowed the officers to subdue § 87(2)(b) and handcuff him. Sgt. Conde never saw an officer punch or kick § 87(2)(b) and Sgt. Conde did not do so. Sgt. Conde did not hear any officer say, "This fucker didn't even drop" and did not say this himself. § 87(2)(b) was fully clothed and at no point were his genitals exposed.

Subject Officer: SGT. KEITH GALLAGHER

- Sgt. Gallagher is a § 87(2)(b) white male with brown hair and blue eyes.
- On August 22, 2012, he was assigned as the Anti-Crime Supervisor and was working from 5:20 p.m. to 2:17 a.m. He was in RMP 639 with PO Kearney and PO Dalessandro and was in plainclothes.

Memo Book (encl. 16A-D)

Sgt. Gallagher made extensive entries in his memo book with regards to this incident (encl. 16A-D).

CCRB Testimony (16E-I)

On May 6, 2013, Sgt. Gallagher provided a statement at the CCRB. § 87(2)(g)

Sgt. Gallagher believed that this incident was part of an Anti-Crime set and provided detailed information pertaining to the stop § 87(2)(g). Sgt. Gallagher corroborated other officer statements as to the civilian's actions as the officers exited their vehicles.

Sgt. Gallagher did not punch or kick § 87(2)(b) when he was on the ground and did not see any other officer do this. At no point did Sgt. Gallagher tell the occupants to "stay the fuck right there" and did not hear any other officer say this. Sgt. Gallagher did not specifically remember how the other three occupants were removed from the vehicle, but stated that they all ended up on the ground, face down. Sgt. Gallagher confirmed that § 87(2)(b) was frisked and his vehicle was searched. However, he could not provide a detailed account of which officers took these actions and how.

§ 87(2)(b) was never taken to the back of the vehicle on the scene and removed of his pants and boxers. No officer placed his hands inside § 87(2)(b)'s boxers and swiped his rectum and genital area. Sgt. Gallagher § 87(2)(g) indicated that he authorized a strip search of § 87(2)(b) because § 87(2)(b) had grabbed his waistband area as he exited his vehicle. During the strip search, § 87(2)(b) removed drugs from his rectum and put them in his mouth. The officers grabbed § 87(2)(b)'s arms to try to obtain the narcotics, which were in his teeth.

§ 87(2)(b) was not compliant with the strip search in that it took some time to remove him from the holding cell. Sgt. Gallagher conducted the strip search in the 101st Precinct stationhouse cell area. PO Rivelli was with Sgt. Gallagher when the strip search was conducted. When § 87(2)(b) was asked to cough and bend over so that the officers could see inside his rectum, § 87(2)(b) removed drugs from

his rectum and put them in his mouth. The officers grabbed § 87(2)(b)'s arms to try to obtain the narcotics, which were in his teeth.

During the struggle, Sgt. Gallagher punched § 87(2)(b) three to four times in the abdominal area. Sgt. Gallagher did not punch § 87(2)(b) in the face and did not see any other officer do so. Sgt. Gallagher did not see any officer kick § 87(2)(b) in the back. Sgt. Gallagher confirmed that § 87(2)(b) was ultimately tasered by Sgt. Conde. Sgt. Conde denied that any officer stated, "This fucker didn't even drop."

Sgt. Gallagher later responded with PO Ellis to the hospital because § 87(2)(b) was fighting with officers at the hospital. Upon his arrival, there were approximately four officers trying to control § 87(2)(b). All the officers were holding § 87(2)(b)'s hands and were eventually able to contain him. No officer hit or punched § 87(2)(b) at the hospital. No officer said that § 87(2)(b) had been an "asshole" all this time and Sgt. Gallagher did not make this comment himself. Sgt. Gallagher could not recall how § 87(2)(b) was transported back to the stationhouse. He did not see any officer kick § 87(2)(b). Sgt. Gallagher never saw § 87(2)(b)'s front tooth knocked out and did not recall § 87(2)(b) returning to the hospital a second time.

Medical Records

Ambulance Call Report (encl. 18D)

§ 87(2)(b) § 87(2)(b) § 87(2)(b)
§ 87(2)(b) § 87(2)(b) § 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) - § 87(2)(b) at 9:27 p.m. (encl. 19A-J)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) § 87(2)(b) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) § 87(2)(b) at 1:58 a.m. (19K-R)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Correctional Health Services (encl. 20A-U)

§ 87(2)(a) PHL § 18(6) § 87(2)(b) § 87(2)(b) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) § 87(2)(b) § 87(2)(b)
§ 87(2)(b) § 87(2)(b) (b)

NYPD Documents

SPRINT (encl. 21A)

At 8:13 p.m., units were requested to New Haven Avenue and Beach 19th Street. At 8:15 p.m., a sergeant arrived at the scene. At 8:38 p.m., three individuals were arrested from the location: two males and one female. An additional report was also prepared. At 8:43 p.m., the units resumed patrol.

Prisoner Holding Pen Roster (encl. 25A-B)

The prisoner holding pen roster revealed that § 87(2)(b) and § 87(2)(b) were in the holding cell area at the time of the incident.

Medical Treatment of Prisoner Report (encl. 29A)

On August 24, 2012, PO Moonon filed a Medical Treatment of Prisoner form for § 87(2)(b)

Nonlethal Weapons Discharge Report (encl. 26A)

While in process of being lodged inside 101 Precinct cell holding area, § 87(2)(b) pulled a large amount of crack cocaine from his rectum and attempt to destroy evidence in cell area. § 87(2)(b) proceeded to punch and kick the officers—resisting arrest—at which time Sgt. Conde deployed the CED device, which ended the struggle without further incident.

Other Evidence

Criminal Court Complaints for § 87(2)(b) and § 87(2)(b) Deponent: PO Rivelli (encl. 30A-F)

§ 87(2)(g)

§ 87(2)(b) The report noted that § 87(2)(b) § 87(2)(b) kicked a police officer, pulled out a plastic bag from his groin area in his pants and threw said bag towards the driver. § 87(2)(b) also pushed a police computer printer from a desk, causing the printer to break. The plastic bag contained 70 plastic twists, each with some cocaine.

Arrest for Incident and Disposition

- § 87(2)(b) § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of February 8, 2013, more than two months after the 90-day filing period, with regard to the incident (encl. 36L).

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 8A).
- This is the first CCRB complaint filed by § 87(2)(b) (encl. 7A).
- § 87(2)(b) has one prior CCRB complaint. § 87(2)(b) § 87(2)(b)

Subject Officers CCRB History

- PO Rivelli has been a member of the service for twelve years and there are no substantiated CCRB allegations against him (encl. 1A-B).
- Sgt. Gallagher has been a member of the service for twelve years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Ellis has been a member of the service for six years and there are two substantiated CCRB allegations against him. In case 200816433, allegations of a retaliatory summons and stop were substantiated on December 9, 2009 and the Board recommended command discipline. In April 2010, the NYPD issued PO Ellis instructions (encl. 3A-B).
- Sgt. Conde has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 4A).
- PO Liu has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 5A).

Conclusion

Identification of Subject Officers

PO Rivelli, PO Ellis, Sgt. Gallagher, Sgt. Conde and PO Liu all acknowledged their interaction with § 87(2)(b) and § 87(2)(b)

Allegations Not Pleaded

§ 87(2)(b) stated that officers approached § 87(2)(b)'s vehicle with their weapons drawn, § 87(2)(g)

§ 87(2)(b) stated that officers called § 87(2)(b) a “sugar butt.” However, § 87(2)(b) never made these allegations § 87(2)(g)

Allegation A- Force: Officers pointed their guns at § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

It is undisputed that § 87(2)(b) had a felony bench warrant and was driving a vehicle when he was stopped by officers. It is also undisputed that officers pointed their guns at the occupants of the vehicle and told § 87(2)(b) to put his hands up.

§ 87(2)(b) and § 87(2)(b) stated that they stopped their vehicle when the officers exited with their guns pointed and ordered them to put their hands up.

PO Rivelli observed § 87(2)(b) operating a vehicle and recognized him from a photograph that was attached to a felony warrant that he had in his possession. PO Rivelli stated that § 87(2)(b) did not stop his vehicle after PO Rivelli activated the emergency system, kept his car in gear and repeatedly reversed and drove the vehicle forward. PO Rivelli, PO Ellis and PO Liu all stated that they pointed their weapons at § 87(2)(b)'s vehicle as § 87(2)(b) was not compliant with commands and the occupants in the vehicle were moving around.

An officer is permitted broad discretion to display his weapon whenever he feels that his life or the life of another is endangered. The determination as to when that exercise of discretion rises to the level of misconduct must be made by assessing the reasonableness of the officer's actions in the totality of the surrounding circumstances. Police Department v. Gliner, OATH Index No. 955/00 (encl. IA-T).

§ 87(2)(g) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g) Therefore, it is recommended that **Allegation A be exonerated.**

Allegation B- Discourtesy: An officer spoke discourteously to § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation C- Discourtesy: PO Anthony Rivelli spoke discourteously to § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(g)
§ 87(2)(b) § 87(2)(b)

§ 87(2)(b) stated that PO Ellis opened the doors on the passenger's side and told occupants of the vehicle to "Stay the fuck right there" and PO Rivelli did not say anything when he approached § 87(2)(b)'s window. § 87(2)(b) stated that PO Ellis remained at the front of the vehicle and PO Rivelli approached the driver's side of the vehicle and said, "Get the fuck out of the car."

PO Ellis stated that he and PO Rivelli interacted with § 87(2)(b) on the driver's side of the vehicle and did not interact with any other civilian at the scene. PO Ellis never told any of the occupants to "stay the fuck right there" and did not hear any other officer say this. PO Ellis stated that he and PO Rivelli told § 87(2)(b) to stop the car and exit. PO Rivelli corroborated PO Ellis' statement that PO Ellis approached the driver's side of the vehicle. He stated that when he approached the driver's seat, he told § 87(2)(b) to stop the car. PO Rivelli stated that he did not use any profanity. All the officers stated that § 87(2)(b) did not place his vehicle in park. They also stated that the occupants in the vehicle

were moving around and cursing. PO Rivelli stated that he was grabbed by one of the occupants in the vehicle.

When an officer uses profanity in trying to secure a civilian's cooperation or for other legitimate law enforcement ends, the profanity may not rise to the level of misconduct. Moreover, the officer may not use profanity gratuitously, or to intimidate or retaliate or to show a lack of respect for a civilian. Police Department v. Dukes and Conway. OATH Index Nos. 1137-39/00 (encl. IIA-I).

§ 87(2)(g)

it is recommended that **Allegations B and C be exonerated.**

Allegation D- Force: PO Anthony Rivelli used physical force against § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation E- Force: PO Justin Ellis used physical force against § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

It is undisputed that PO Rivelli and PO Ellis used physical force against § 87(2)(b) § 87(2)(g).

§ 87(2)(b) stated that officers pulled over § 87(2)(b)'s vehicle and when § 87(2)(b) asked why he was being stopped, PO Ellis and PO Rivelli immediately grabbed him, pulled him through the driver's window, and began kicking and punching him in the face, back, and back of the head. § 87(2)(b) stated that when he noticed the unmarked vehicle behind him with flashing lights, he pulled over. § 87(2)(b) stated that PO Rivelli grabbed him by his dreadlocks and tried to pull him through the window, but then opened the driver's side door, punched § 87(2)(b) pulled him onto the ground and handcuffed him.

PO Rivelli stated that § 87(2)(b) continued to drive and did not comply with orders to stop the vehicle. When § 87(2)(b) lunged toward the center console, PO Rivelli grabbed § 87(2)(b) to try to remove him through the window. PO Rivelli opened the driver's door and brought § 87(2)(b) to the ground, where § 87(2)(b) flailed his arms and legs, kicked, punched and spit at the officers. PO Rivelli stated that he punched § 87(2)(b) and may have made contact with § 87(2)(b)'s head. Both PO Ellis and PO Rivelli stated that § 87(2)(b) refused to stop the vehicle. As PO Rivelli and PO Ellis were approaching the vehicle, § 87(2)(b) reached toward the center console and PO Ellis feared that § 87(2)(b) was reaching for a gun. PO Ellis stated that § 87(2)(b) was ultimately removed from the driver's side door and resisted arrest. PO Ellis may have punched § 87(2)(b) in the head during the violent struggle. Both PO Liu and Sgt. Gallagher corroborated PO Rivelli's testimony that the occupants were moving around in the vehicle. PO Liu did not remember if PO Ellis and PO Rivelli engaged in any physical interaction with § 87(2)(b).

According to Patrol Guide Procedure 203-11 (encl. IIIA), officers are required to use the minimum amount of force necessary in order to overcome resistance and effect an arrest.

§ 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegations D and E be exonerated.**

Allegation F- Abuse of Authority: Sgt. Keith Gallagher participated the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(b) stated that PO Ellis, PO Rivelli and PO Liu searched § 87(2)(b)'s vehicle. § 87(2)(b) stated that PO Ellis searched the glove compartment and under the front seats of the vehicle, PO Liu searched under the back seats and PO Rivelli and PO Ellis looked in the trunk of the vehicle. § 87(2)(b) did not witness a car search.

PO Rivelli stated that he did a cursory search of the lunge-able area of the vehicle which § 87(2)(b) was driving, which consisted of the front seat and the area where § 87(2)(b) was reaching toward the center console between the gear shifter and the front seat. PO Rivelli did not go into compartments. PO Ellis stated that he and PO Rivelli searched where § 87(2)(b) had been reaching including the driver's seat and the console and did not remember specifically searching the glove compartment. PO Liu stated that he did not search the vehicle, but did observe a search being performed. PO Liu did not know which officers searched the vehicle and did not know the extent of the search. Sgt. Gallagher stated that he was supervising the search, though he did not partake in it. He could not remember which officers searched the vehicle and which areas of the vehicle were searched.

§ 87(2)(g) Therefore, it is recommended that **Allegation F be closed as unsubstantiated.**

Allegation G- Abuse of Authority: PO Justin Ellis strip-searched § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

Allegation H- Abuse of Authority: PO Justin Ellis conducted a cavity search of § 87(2)(b) at Beach 19th Street and New Haven Avenue in Queens.

§ 87(2)(b) stated that PO Ellis pulled down § 87(2)(b)'s pants and boxers, placed his hands inside § 87(2)(b)'s rectum and then swiped to the front and put his hands near his genitals, while Sgt. Gallagher observed. § 87(2)(b) stated that when § 87(2)(b) was removed from the vehicle, he was placed in handcuffs and seated on the curb. Sgt. Gallagher then told an officer to take § 87(2)(b) to the precinct stationhouse. He did not state that a strip search or cavity search was performed.

PO Rivelli, PO Ellis, Sgt. Gallagher and PO Liu all stated that no strip search was conducted at the scene. PO Ellis stated that he did not interact with § 87(2)(b) at Beach 19th Street and New Haven Avenue and did not conduct a rectal search or strip search.

§ 87(2)(b)'s arrest report indicated a strip search was performed, but PO Rivelli stated that he was certain that § 87(2)(b) was not strip-searched and entered that there had been strip search due to the fact that § 87(2)(b)'s groin was exposed during a struggle that ensued at the stationhouse. The command log makes no mention of a strip search.

In the holding cell area at the precinct, § 87(2)(b) stated that the cocaine that was recovered following a struggle he had with officers, but denied that it was his. § 87(2)(b) stated that during § 87(2)(b)'s interaction with the officers, a package fell out and ended up within the holding cell. Sgt. Gallagher, PO Ellis and PO Rivelli stated that § 87(2)(b) reached into his groin area and removed cocaine.

§ 87(2)(g) Therefore, it is recommended that **Allegations G and H be unfounded.**

Allegation I- Abuse of Authority: PO Jeffrey Liu frisked § 87(2)(b) and § 87(2)(b)

Allegation J- Abuse of Authority: PO Anthony Rivelli frisked § 87(2)(b)
§ 87(2)(b) stated PO Liu frisked § 87(2)(b) and PO Rivelli frisked § 87(2)(b). PO Rivelli stated that he did not interact with the other occupants of the vehicle, except to speak with § 87(2)(b) and § 87(2)(b). PO Liu stated that he did not frisk any of the individuals at the scene. § 87(2)(g)

Therefore, it is recommended that **Allegations I and J be closed as victim unavailable.**

Allegation K- Force: Officers used physical force against § 87(2)(b) at the 101st Precinct stationhouse.

Allegation L- Force: PO Justin Ellis used physical force against § 87(2)(b) at the 101st Precinct stationhouse.

Allegation M- Force: PO Anthony Rivelli used physical force against § 87(2)(b) at the 101st Precinct stationhouse.

Allegation N- Force: Sgt. Kenny Conde tasered § 87(2)(b) at the 101st Precinct stationhouse.
It is undisputed that PO Ellis and officers used physical force against § 87(2)(b). It is also undisputed that Sgt. Conde tasered § 87(2)(b).

§ 87(2)(b) stated that officers punched him in the face and kicked him on the side and was tasered. § 87(2)(b) corroborated § 87(2)(b)'s statement.

PO Ellis stated when § 87(2)(b) threw him into the wall and started punching him and kicking him, he punched § 87(2)(b) in the cheek in defense. PO Ellis did not kick § 87(2)(b) and did not see any other officer do so. § 87(2)(b) threw a computer screen and a printer during the struggle. Also, § 87(2)(b) pulled out a substance from his groin area and threw it into the holding cells. At that point, Sgt. Conde tasered § 87(2)(b) to subdue him. PO Rivelli corroborated PO Ellis' statement, but added that PO Rivelli only issued verbal commands and never actually had any physical contact with § 87(2)(b). PO Rivelli stated that the tasing of § 87(2)(b) appeared to be successful as the officers were able to gain compliance and handcuff him. PO Liu stated that he did not see PO Ellis hitting § 87(2)(b) and never hit § 87(2)(b) himself. PO Liu did not try to trip § 87(2)(b) to bring him to the ground and did not have any physical interaction with him. Sgt. Conde stated that he attempted to grab § 87(2)(b)'s arms and bring him to the ground in order to gain control, but was unable to do so and the only other officer who entered was Sgt. Gallagher. Sgt. Conde believed that by swinging his arms, § 87(2)(b) was attempting to punch the officers and escape from the holding cell area.

The Nonlethal Weapons Discharge Report detailed that § 87(2)(b) attempted to destroy evidence in cell area and punched and kicked the officers. It was noted that Sgt. Conde deployed the CED device, which ended the struggle without further incident.

According to Patrol Guide Procedure 203-11 (encl. IIIA), officers are required to use the minimum amount of force necessary in order to overcome resistance and effect an arrest.

Therefore, it is recommended that **Allegations K, L, M and N be exonerated.**

Allegation O- Discourtesy: Sgt. Kenny Conde spoke discourteously to § 87(2)(b) at the 101st Precinct stationhouse.

Allegation P- Discourtesy: PO Justin Ellis spoke discourteously to § 87(2)(b) at the § 87(2)(b)

§ 87(2)(b) stated that in the holding cell, Sgt. Conde said, "This fucker didn't even drop" and then tasered him. § 87(2)(b) also stated that at the hospital, PO Ellis told § 87(2)(b) that he had been an "asshole all this time." Sgt. Conde and PO Ellis denied these statements. PO Liu, PO Rivelli and Sgt. Gallagher did hear any officer make this statement in the holding cell.

§ 87(2)(g)

§ 87(2)(b)

Therefore, it is recommended that **Allegations O and P be unsubstantiated.**

Allegation Q- Force: Officers used physical force against § 87(2)(b) in the patrol van.

§ 87(2)(b)

§ 87(2)(b) stated that in the marked patrol van on the way back from his first visit to § 87(2)(b) an officer elbowed him on the back of the head and in the face, but § 87(2)(b) did not know who did this. Another officer, described only as a short white male, kicked § 87(2)(b) and one of § 87(2)(b)'s front teeth was knocked out. § 87(2)(b) on the other hand, stated that § 87(2)(b)'s tooth had fallen out in the holding cell prior to § 87(2)(b) leaving to § 87(2)(b).

PO Ellis stated that he had gone to the hospital alone with § 87(2)(b) but another unidentified officer assisted him. A patrol van that had been in the area picked up himself and § 87(2)(b) but no further information was provided about which officers were in the van. Sgt. Gallagher stated that he entered the hospital and saw four other officers present. He could not recall how § 87(2)(b) was transported back to the stationhouse and if he had transported him. Neither PO Ellis nor Sgt. Gallagher kicked § 87(2)(b) in the teeth in the patrol van and did not see any officer do this. They did not see § 87(2)(b)'s tooth fall out.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegation Q be closed as officer unidentified.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date